

## 25STCV00081 25STCV00081

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-31

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV00081

NICOLLE

WILLIAMS, et al. vs DAMION WILLIAMS, et al.

July

31, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT DAMION WILLIAMS' MOTION FOR EVIDENTIARY/ISSUE/TERMINATING SANCTIONS  
FOR PLAINTIFF ANDRE WILLIAMS' VIOLATION OF ORDER TO RESPOND TO FORM  
INTERROGATORIES – CONSTRUCTION LITIGATION.

DEFENDANT DAMION WILLIAMS' MOTION FOR EVIDENTIARY/ISSUE/TERMINATING

SANCTIONS FOR PLAINTIFF NICOLLE WILLIAMS' VIOLATION OF ORDER TO RESPOND TO FORM INTERROGATORIES – CONSTRUCTION LITIGATION.

DEFENDANT DAMION WILLIAMS' MOTION FOR EVIDENTIARY/ISSUE/TERMINATING SANCTIONS FOR PLAINTIFF NICOLLE WILLIAMS' VIOLATION OF ORDER TO RESPOND TO REQUESTS FOR PRODUCTION OF DOCUMENTS.

RULING:

The Court grants all three unopposed Motions, as prayed.

The Court orders this entire case dismissed.

Additionally, on or before August 31, 2026, to Defendant DAMION WILLIAMS, Plaintiff ANDRE WILLIAMS and counsel Mainak D'Attaray jointly and severally shall pay discovery sanctions in the sum of \$2,773.41, and Plaintiff NICOLLE WILLIAMS and Mainak D'Attaray jointly and severally shall pay the total amount of \$5,546.82.

Defendant to give notice.

I.

#### BACKGROUND

On January 2, 2025, NICOLLE WILLIAMS and ANDRE WILLIAMS (Plaintiffs) filed a Complaint against DAMION WILLIAMS, DAMION'S CONSTRUCTION SERVICES LLC, ABDULLA MIRPUR, and MIRPUR, INC. (Defendants).

On June 9, 2025, Plaintiffs filed the First Amended Complaint (FAC), listing Causes of Action for:

1.

NEGLIGENCE;

2.

INTENTIONAL MISREPRESENTATION;

3.

BREACH OF CONTRACT;

4.

BREACH OF THE DUTY OF GOOD FAITH AND FAIR DEALING;

5.

FRAUD;

6.

RESTITUTION—UNJUST ENRICHMENT; and,

7.

UNFAIR BUSINESS PRACTICES [BUS. & PROF. CODE § 17200].

Plaintiffs allege that they entered into a fraudulently induced contract for home improvement at 2602 West 75th Street, Los Angeles, and Defendants had no intention of completing the agreed work.

On June 9, 2026, DAMION WILLIAMS (Defendant) filed the three Motions for Issue, Evidentiary or Terminating, Sanctions, on grounds that Plaintiffs failed to respond to Form Interrogatories - Construction Law, and Requests for Documents, notwithstanding the Order entered on April 13, 2026, compelling the responses. Defendant also requests monetary sanctions against each Plaintiff and counsel (\$2,773.41 as to one Motion against ANDREW WILLIAMS, and \$2,773.41 as to each of two Motions against NICOLLE WILLIAMS).

There is no Opposition filed as to these matters.

II.

LEGAL STANDARD

Where

a party willfully disobeys a discovery order, courts have discretion to impose terminating, issue, evidence or monetary sanctions. (E.g., Code Civ. Proc., §§ 2023.010, subd. (g), 2030.290, subd. (c); R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 495.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.)

III.

#### ANALYSIS

DAMION WILLIAMS

(Defendant) filed the three Motions for Sanctions, based on Plaintiff’s disobeying the April 13, 2026 discovery Order.

To avoid sanctions, the burden of proving that a discovery violation was not willful is on the party on whom the discovery was served. (Cornwall v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250, 252- 253.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.)

The failure to file a proper and timely opposition in trial court creates a waiver of the issues on any appeal. (Bell v. Am. Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602; Cabrini Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693 [appellate court will not consider any erroneous rulings where an objection could have been made].)

Here, no Opposition has been filed to raise any issues for the Court to address.

IV.

#### CONCLUSION

The Court grants all three

unopposed Motions, as prayed.

Finally, the Court finds an  
absence of substantial justification. (E.g., Code Civ. Proc., § 2023.030.)